

TEMPORARY, SEASONAL LABOR

Running a compliant H-2B seasonal program

A plain-language walkthrough of the need test, the cap, and the recruitment DOL requires before a single worker arrives.



66,000

ANNUAL CAP,
SPLIT BY HALF-
YEAR

9 mo

MAXIMUM STAY
PER PERIOD OF
NEED

A visa for real, provable peaks — not year-round staffing.

H-2B lets an employer bring in temporary non-agricultural workers when the need for labor is genuinely temporary — a season, a one-time project, an intermittent surge — and no US workers are available to fill it.

4

WAYS TO PROVE TEMPORARY NEED

Seasonal, peakload, intermittent, or one-time occurrence. Pick the one that matches the actual business pattern.

2×

CAP WINDOWS PER YEAR

33,000 for the winter half (Oct–Mar), 33,000 for the summer half (Apr–Sep).

~3 mo

FILING WINDOW BEFORE THE START DATE

Recruitment and DOL certification are filed 75 to 90 days out — the standard window employers plan around.

WHAT'S IN THIS GUIDE

03	Proving the need is temporary	The four qualifying patterns
04	Labor certification & recruitment	The DOL stage, step by step
05	The season, mapped out	Timeline from filing to arrival
06	What it costs, and who pays	Fee breakdown
07	Why cases get denied	The recurring reasons
08	How we run it with you	Working with Corvell

Four patterns. The need has to fit one exactly.

Seasonal

Tied to a season of the year — landscaping in summer, a resort's high season — and recurring predictably each year. The most common basis for H-2B.

Peakload

A permanent staff exists, but temporarily needs help above normal levels — a processing plant during harvest, a retailer during the holidays.

Intermittent

No permanent staff for this work at all — need arises occasionally, without a predictable pattern, and is short each time it does.

One-time occurrence

A single, non-recurring event — a plant relocation, a storm-recovery project — that will not happen again. Rare, and heavily documented when used.

RULE OF THUMB

The period of need generally can't exceed nine months, and it has to repeat — or clearly end — on a predictable basis. A need that looks permanent, however it's labeled, won't qualify.

Labor certification comes before USCIS ever sees the case.

Like PERM, H-2B needs DOL to certify that no US workers are available — but on a much tighter clock, tied to the season.

01 Prevailing wage & job order

75 DAYS BEFORE START • SWA

Wage is set, and a job order goes to the State Workforce Agency for the area of intended employment — it has to stay posted through 21 days before the start date.

02 File ETA-9142B

75–63 DAYS BEFORE START • DOL

The temporary labor certification application itself, with the job order and the recruitment report attached. DOL reviews for completeness before it moves further.

03 Additional recruitment

TWO PRINT ADS • 10 DAYS

Two Sunday newspaper ads in the area of intended employment, plus a state job-service listing. Every US applicant gets a documented, good-faith review.

04 Certification, then Form I-129

45 DAYS BEFORE START • USCIS

Once DOL certifies the number of workers needed, the petition goes to USCIS — subject to whichever half-year cap window is still open.

KEEP IN MIND

Even after certification, you must continue to accept qualified US applicants until 21 days before the workers' start date — recruitment isn't a one-time box to check.

TIMELINE

Everything is set against the start date.

Working backward from the day workers are needed, not forward from when you decide to file — the reverse of how most visa categories run.

Day -75

Job order posted
ETA-9142B filed the same window.

Day -60

Print ads run
Two Sunday postings, back to back.

Day -45

DOL certifies
I-129 filed with USCIS immediately.

Day -21

Recruitment obligation ends
Last point to accept US applicants.

Day 0

Workers start
Visa stamping abroad, if needed, precedes this.

~3 mo

FILING WINDOW BEFORE
THE START DATE

2

CAP WINDOWS A YEAR TO
PLAN AROUND

21 days

MINIMUM RECRUITMENT
WINDOW BEFORE START

What it costs, and who is allowed to pay it.

The rule that surprises employers most here: recruitment, transportation, and most fees must come from the employer — deducting them from an H-2B worker's wages is a common, and costly, violation.

ITEM	WHO PAYS	TYPICAL
Job order & print advertising	Employer	\$500–\$1,800
Temporary labor certification (ETA-9142B)	Employer	No fee
Form I-129 base filing fee	Employer	\$780
H-2B supplemental fee	Employer	\$150–\$1,050
Fraud Prevention & Detection fee	Employer	\$150
Inbound transportation & visa costs	Employer	Varies
Premium processing (optional)	Either	\$1,015

Government fees current at publication and subject to change without notice. Return transportation home at the end of employment is also generally required for workers who complete the full period of need. Legal fees are quoted separately as a flat fee per season.

Five reasons certification gets denied.

Almost every denial we see traces back to one of these, and almost all of them are avoidable with earlier planning.

Need doesn't match the chosen basis

Calling a pattern "seasonal" when payroll records show near-constant staffing is the fastest way to a denial — DOL checks against your own history.

Filed outside the window

The 75-to-90-day filing window before the start date is fixed. File too early or too late and the application is rejected outright, no exceptions.

Recruitment steps out of order

Ads that run before the job order is approved, or that quote a different wage, restart the clock — sometimes past the cap window entirely.

Prior violations on file

An unresolved wage-and-hour finding, or a past corresponding-employment violation, can block certification until it's cleared up.

Cap reached before filing

The half-year cap fills fast, sometimes within days of opening. A case built on the right timeline but filed a week late can miss the window entirely and wait for the next half-year.

You should never have to ask where a case stands.

One intake, then we drive

A single structured intake per season. After that we chase the job order, the ads, and the filing windows — not your operations team.

A dashboard, not a thread

Every matter runs through auditable workflows with live status. No version-guessing, no buried email.

Flat fees, per season

Quoted before we start, 20–40% below conventional firms, with no junior-associate markups added on the way.

Planned around your calendar

We track the cap windows and file on your season's clock, so a filing deadline never depends on someone remembering the date.

The screenshot displays the 'IMMIGRATION WORKSPACE' dashboard for 'Your sponsored employees'. It features a top navigation bar with a '+ Add employee' button. Below the header, a summary table provides an overview of employee counts and case statuses:

TOTAL EMPLOYEES	ACTIVE STATUS	IN PROGRESS	NEEDS ATTENTION
42	31	7	4

Below the summary table, there are filters for 'All (42)', 'Active (31)', 'In progress (7)', and 'Needs attention (4)'. A search bar labeled 'Search employees...' is also present. The main content area displays six employee cards, each with a profile picture, name, title, visa type, and current case status:

- Priya Raghavan** (PR): Senior Data Scientist, H-1B - SPECIALTY OCCUPATION. Status: Active. Valid through Mar 14, 2028. [View case →](#)
- Jonas Kessler** (JK): Backend Engineer, EB-2 - PERMANENT RESIDENCE. Status: In progress — PERM filed. Step 3 of 5. Labor certification. [View case →](#)
- Sofia Ortega** (SO): Site Reliability Engineer, O-1A - EXTRAORDINARY ABILITY. Status: Action needed — RFE response due. Response due in 6 days. [View case →](#)
- Tomas Novak** (TN): DevOps Engineer, H-1B - SPECIALTY OCCUPATION. Status: Renewal window open. Expires Oct 29, 2026 - extend now. [View case →](#)
- Amara Haile** (AH): Product Designer, H-1B - SPECIALTY OCCUPATION. Status: Active. Valid through Jul 2, 2027. [View case →](#)
- Liang Wu** (LW): Machine Learning Engineer, H-1B - CAP-SUBJECT PETITION. Status: In progress — awaiting USCIS receipt. Step 2 of 4. Petition filed. [View case →](#)

NEXT STEP

Tell us your season. We'll build the calendar backward from your start date.

A 30-minute call is usually enough to confirm your need qualifies,
and what has to happen before the cap window opens.

TALK TO US

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